

Auckland University of Technology (New Zealand)

Dataset Release Agreement

Human Digital Twin Intelligence: Integrating Multimodal AI and Generative Models for Non-Intrusive Health and Activity Monitoring

Dataset: HDT Intelligence Multimodal Dataset ("HDT Dataset")

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Introduction

This Data Release Agreement applies only to de-identified, non-video, sensor-derived research data generated from the AUT Human Digital Twin (HDT) Intelligence study. The releasable dataset may include de-identified IMU data, Point-cloud data, radar-derived data/features, Hexoskin-derived heart-rate and breathing-rate data, activity labels, timestamps, and non-identifying metadata.

Raw video recordings are excluded from this agreement and will not be released. Video is collected only to support activity labelling, synchronisation checking, and validation of the sensor data during the laboratory study. All video recordings are treated as identifiable biometric data, because participants may be identifiable from their face, body, posture, movement patterns, gait, or other visual characteristics. Any data released under this agreement will therefore be limited to de-identified, non-video data and must be used only for approved research purposes under the conditions set out in this agreement.

The HDT Dataset is intended to support research in human activity recognition, multimodal sensing, radar-based vital-sign estimation, digital health, explainable AI, and Human Digital Twin modelling. It must not be used for clinical diagnosis, treatment decisions, individual surveillance, biometric identification, or any purpose inconsistent with participant consent, AUT ethics approval, this Agreement, or applicable law.

Release of the Dataset

To advance responsible AI, digital health, and multimodal human-sensing research, and to the extent permitted by law and ethics approval, AUT may make the HDT Dataset available to bona fide researchers on a case-by-case basis only. All requests must be submitted in writing by the researcher's institution or organisation on behalf of the individual researcher(s) or research unit.

To receive access to any part of the HDT Dataset, the requesting institution or organisation and the named researcher(s) must sign this Agreement and agree to observe all restrictions below. AUT may refuse, suspend, or revoke access where the proposed use is inconsistent with the project aims, participant consent, ethics approval, cultural or privacy obligations, data security expectations, or AUT policies.

For the purposes of this Agreement, "**Licensee**" refers collectively to the research institution or organisation named in this Agreement and the individual researcher(s) named below, who are jointly and severally bound by its terms.

Ownership of the HDT Dataset and associated intellectual property remains with Auckland University of Technology and/or the original rights holder(s). Nothing in this Agreement transfers ownership of the HDT Dataset to the **Licensee**.

The HDT Dataset is provided “as is” for research purposes only, without any warranty of any kind, express or implied, including warranties of accuracy, completeness, fitness for a particular purpose, merchantability, non-infringement, or clinical validity. The **Licensee** assumes all risks associated with use of the HDT Dataset.

Consent and Restrictions

The **Licensee** agrees to the following restrictions and obligations in relation to the HDT Dataset:

1. Permitted Use

The HDT Dataset may be used only for the approved non-commercial research project described in the **Licensee's** access request and approved by AUT. Permitted uses may include model development, benchmarking, signal processing, multimodal fusion, explainable AI research, and scholarly publication, provided that all outputs comply with this Agreement.

Any change in research purpose, investigator list, institutional unit, storage environment, country of processing, or data-processing platform requires prior written approval from AUT's Principal Investigator or authorised delegate.

2. Redistribution

Without prior written approval from AUT's Principal Investigator or authorised delegate, the HDT Dataset, in whole or in part, must not be further distributed, published, sold, copied, sublicensed, transferred, deposited in public repositories, used in open model training corpora, or disseminated in any way or form whatsoever, whether for profit or not.

This restriction includes sharing the HDT Dataset with a different facility, laboratory, research group, organisational unit, collaborator, cloud provider, external contractor, student, or third party not explicitly named in this Agreement or in the approved Data Release Schedule.

3. Protection of De-identification and Privacy

The **Licensee** must not attempt to identify, contact, profile, single out, track, or re-identify any participant or any person represented in the HDT Dataset. The **Licensee** must not combine the HDT Dataset with other data sources for the purpose or foreseeable effect of re-identification.

The **Licensee** must promptly notify AUT's Principal Investigator in writing if it discovers any information, vulnerability, linkage, or inference that could reasonably lead to re-identification of an individual or disclosure of sensitive personal information.

The **Licensee** must not use the dataset to infer or classify sensitive attributes of individuals, including health status beyond approved research variables, disability, ethnicity, sex life, political or religious views, or other protected attributes, unless such analysis has been expressly approved in writing by AUT and covered by ethics approval.

4. Data Security

The **Licensee** must implement appropriate technical, organisational, and administrative measures to secure the HDT Dataset against unauthorised access, use, disclosure, alteration, loss, or destruction.

At minimum, the HDT Dataset must be stored and processed only on secure, institutionally managed systems protected by access control, strong authentication, encryption at rest and in transit, regular security patching, and access limited to named researchers on a strict need-to-know basis.

The **Licensee** must not upload the HDT Dataset, in whole or in part, to public websites, public code repositories, public dataset platforms, social media, unmanaged personal devices, removable media without encryption, or external AI/LLM services without prior written approval from AUT.

The **Licensee** must maintain a record of all people who access the HDT Dataset and must provide a written summary of data security measures to AUT upon request.

5. Destruction or Return

The **Licensee** agrees to destroy or return all copies of the HDT Dataset, including unmodified copies, local working copies, derived copies containing participant-level data, backups under the **Licensee's** control, and temporary files, if requested by AUT's Principal Investigator or authorised delegate.

Upon expiry, termination, or completion of the approved research project, the **Licensee** must cease use of the HDT Dataset and provide written certification of destruction or return within 30 days, unless AUT has approved continued retention in writing.

6. Modification, Derivatives, and Commercial Use

The **Licensee** may create derived features, trained models, statistical summaries, code, or analytical outputs only for the approved research purpose. Derived outputs must not contain identifiable data or reconstructable participant-level signals unless expressly approved by AUT.

Without prior written approval from AUT, the HDT Dataset, in whole or in part, must not be used for commercial purposes. The **Licensee** must not use the HDT Dataset, its contents, AUT's name, AUT logos, project marks, or associated metadata to manufacture, promote, sell, license, validate, certify, or commercialise products, services, technologies, or models.

Without prior written approval from AUT, the **Licensee** must not file patent applications or other intellectual property claims that rely materially on access to the HDT Dataset or that would restrict AUT's use, release, or research exploitation of the HDT Dataset.

7. Prohibited High-Risk Uses

The HDT Dataset must not be used for biometric identification, face recognition, identity verification, individual surveillance, employment screening, insurance assessment, law-enforcement profiling, automated decision-making about individuals, clinical diagnosis, treatment recommendations, or medical-device validation without separate written approval and applicable ethics/regulatory approval.

The **Licensee** must not use the HDT Dataset to train or fine-tune general-purpose foundation models, public generative AI systems, or models intended for unrestricted redistribution unless expressly authorised in writing by AUT.

8. Publication Requirements

The **Licensee** may publish research results derived from the HDT Dataset only in aggregated, de-identified, and non-reconstructable form. Publications, presentations, reports, code releases, model releases, figures, tables, and supplementary materials must not include participant-identifiable information or raw participant-level signals unless expressly approved by AUT.

The **Licensee** must obtain prior written approval from AUT before including raw video images, video frames, depth images, identifiable visual material, or more than minimal illustrative examples from the HDT Dataset in any publication, presentation, report, website, repository, demonstration, or public release.

In no case may any output use participant data in a way that could reasonably cause embarrassment, distress, stigma, discrimination, cultural harm, or loss of privacy to any participant or community.

9. Citation and Acknowledgement

All documents, papers, presentations, datasets, software repositories, model cards, and other outputs that report research using the HDT Dataset must acknowledge the use and source of the HDT Dataset and cite the relevant dataset paper or project record as specified by AUT.

Until a formal dataset paper or DOI is available, use the following acknowledgement: "This work used the HDT Intelligence Multimodal Dataset developed by Auckland University of Technology through the DCT-funded project Human Digital Twin Intelligence: Integrating Multimodal AI and Generative Models for Non-Intrusive Health and Activity Monitoring."

Provisional citation: *Yongchareon, S., Singh, A., Liu, Y., et al. HDT Intelligence Multimodal Dataset for Non-Intrusive Human Activity and Vital-Sign Monitoring. Auckland University of Technology, 2026. [Dataset/manuscript in preparation].*

10. Publications and Outputs to AUT

A copy of any public or general-release report, paper, preprint, thesis chapter, software repository, benchmark, model card, dataset card, or related code that uses the HDT Dataset must be forwarded to AUT's Principal Investigator promptly upon release or publication.

Where reasonable, the **Licensee** must notify AUT at least 14 days before public release of outputs that include substantial results derived from the HDT Dataset so AUT may check for privacy, confidentiality, citation, or ethics concerns. AUT's review is not scientific censorship and does not transfer responsibility for the **Licensee's** work.

11. Ethics, Law, and Cultural Responsibility

The **Licensee** must comply with all applicable laws, regulations, institutional ethics approvals, privacy requirements, and research-integrity standards, including the New Zealand Privacy Act 2020, where applicable and any relevant obligations in the **Licensee's** jurisdiction.

The **Licensee** acknowledges that the HDT project is grounded in a responsible, inclusive AI and AUT's Te Kete and Te Aronui commitments. Use of the HDT Dataset must respect participant autonomy, confidentiality, data minimisation, kaitiakitanga/guardianship, manaakitanga/care, and culturally responsible data handling.

The **Licensee** must immediately inform AUT if any ethics, privacy, legal, cultural, or security incident occurs in connection with the HDT Dataset.

12. No Clinical or Participant Feedback Use

The HDT Dataset is a research dataset. It must not be used to make claims about the health, fitness, diagnosis, treatment needs, or risk status of any participant. The **Licensee** must not attempt to provide participant-specific feedback or contact participants unless expressly authorised by AUT.

13. Indemnification

To the extent permitted by law, the **Licensee** shall indemnify, defend, and hold harmless Auckland University of Technology, its officers, employees, researchers, students, agents, and authorised representatives from and against any and all claims, damages, losses, liabilities, costs, and expenses, including reasonable legal fees, arising out of or in connection with: (a) the **Licensee's** use, storage, disclosure, analysis, publication, or redistribution of the HDT Dataset; (b) any breach of this Agreement by the Licensee; or (c) any negligent, unlawful, unethical, or unauthorised act or omission by the **Licensee**.

This indemnification obligation shall not apply to the extent a court of competent jurisdiction finally determines that such claims, damages, losses, liabilities, costs, or expenses were solely and directly caused by AUT's gross negligence or wilful misconduct.

14. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of New Zealand. The parties submit to the non-exclusive jurisdiction of the New Zealand courts. Before commencing formal proceedings, the parties will attempt in good faith to resolve any dispute through written notice, discussion between authorised representatives, and, where appropriate, mediation in Auckland, New Zealand.

15. Term and Termination

This Agreement is effective upon execution by all required parties. Unless a shorter period is specified in the Data Release Schedule, the licence is granted for the duration of the approved research project and in any case no longer than three years from the date of execution, unless renewed in writing by AUT.

AUT may terminate this Agreement immediately upon material breach, privacy or security incident, ethics concern, misuse of the HDT Dataset, or failure to comply with AUT's reasonable instructions. Upon termination, Clauses 2 through 14, 16, 17, 19, and any provisions intended to survive shall continue to apply.

16. No Partnership

Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, employment relationship, sponsorship, endorsement, or other legal association between AUT and the **Licensee**. The **Licensee** must not represent that AUT endorses Licensee's research, products, services, or conclusions unless AUT has provided express written approval.

17. Assignment

The **Licensee** may not assign, transfer, delegate, or sublicense any rights or obligations under this Agreement without AUT's prior written consent.

18. Order of Precedence

If there is any inconsistency between this Agreement, a Data Release Schedule, and any access-request correspondence, the following order applies unless AUT states otherwise in writing: (1) this Agreement; (2) the signed Data Release Schedule; (3) AUT's written approval conditions; and (4) the **Licensee's** access request.

Data Release Schedule

This schedule must be completed for each release or update of the HDT Dataset.

Field	Details
Dataset release/version	HDT Dataset v ____ / Date: ____ / Checksum or manifest: ____
AUTEC / ethics reference	AUTEC Reference No.: ____ / Approval date: ____
Released data tier	☐ Processed sensor data only ☐ Raw non-visual sensor data ☐ Derived labels/annotations ☐ Limited visual/depth data by special approval
Modalities included	☐ IMU ☐ Radar/mmWave ☐ Hexoskin/wearable physiological data ☐ Depth/PIR/non-intrusive sensing ☐ Derived annotations ☐ Other: ____
Excluded data	Raw video recordings and identifiable visual data are excluded unless specifically listed above and approved in writing.
Approved project title	
Approved researchers	
Approved institution/unit	
Approved storage environment	
Approved countries of storage/processing	
Licence period	From ____ to ____
Special conditions	

Execution

By signing below, the parties confirm that they have the authority to enter into this Agreement and agree to be bound by its terms.

LICENSEE INSTITUTION / ORGANISATION	
Institution/organization name	
Authorised representative name and title	
Signature	

Date	
Organisation address	
Contact information	
NAMED RESEARCHER(S)	
Name(s), title(s), email(s)	
Principal researcher signature	
Date	
AUT / DATA PROVIDER	
AUT Principal Investigators	A/Prof. Sira Yongchareon / Dr Anuradha Singh / Dr Yanbin Liu
Signature	
Date	

Submission Instructions

Please scan and send the completed agreement from the **Licensee** institution's official email address to the AUT Principal Investigator(s): sira.yongchareon@aut.ac.nz, anuradha.singh@aut.ac.nz, and yanbin.liu@aut.ac.nz.

The email subject line should be: "HDT Dataset Access Request - [Institution Name]". The email should include: (1) a short description of the **Licensee** institution's relevant research experience; (2) the specific rationale for seeking access to the HDT Dataset; (3) the intended research project and methods; (4) the named researchers requiring access; and (5) a summary of proposed data security measures.